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Attorneys for Plaintiffs

The Honorable Thomas O Rice

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF WASHINGTON
AT SPOKANE

JANE ELIZABETH ROBERTS, *et al,*

Plaintiffs,

v.

SHRINERS HOSPITALS FOR CHILDREN, SHRINERS HOSPITALS FOR CHILDREN-SPOKANE, BEVERLY BOKOVITZ, FRANCES FARLEY, JERRY GANTT, JOHN McCABE, PHILLIP GRADY, PETER BREWER, AND GOV. JAY INSLEE

Defendants.

No. 2:23-CV-295-TOR

PLAINTIFFS' RESPONSE TO SHRINERS CHILDREN'S NOTICE OF SUPPLEMENTAL AUTHORITY

Plaintiffs respond to Shriners Children's Notice of Supplemental Authority as follows:

Shriners submits as supplemental authority Judge Robert Bryan's Order granting Governor Inslee's Motion to Dismiss in the *Curtis et al. v. PeaceHealth, et al.*, Case No. 3:23-cv- 05741-RJB (Dkt. 32) case. That decision does not qualify as supplemental authority for the following reasons:

First, a District Court decision is not a binding authority on another District Court.

Second, the allegations against Shriners are broader than those brought against Gov. Inslee.

Third, Plaintiffs respectfully represent that Judge Bryan's decision is incorrect, and it will be appealed to the Ninth Circuit Court of Appeals in due course.

Fourth, Plaintiffs respectfully assert that Judge Bryan was incorrect when he held, "The Plaintiffs' Amended Complaint maintains that the Pfizer-BioNTech vaccine was not fully approved in August of 2021 and so was, and still is, 'experimental.' This contention…is belied by the FDA's approval of COMIRNATY®…"

Plaintiffs actual allegation is as follows:

> "As of the date of the filing of this Amended Complaint, no FDA-licensed COVID-19 vaccine has been introduced into commerce for general commercial marketing. Therefore,

> Governor Inslee exclusively relied on investigational new drugs under 21 U.S.C. §360bbb-3 authorization for Plaintiffs to comply with his 21-14-1 Proclamation." (Doc 8, ¶ 27).

Judge Bryan's characterization of Plaintiffs' claims is unclear because Judge Bryan did not distinguish between the two different COVID-19 products manufactured by Pfizer. "Pfizer-BioNTech COVID-19 Vaccine" (capital letter V) is the formal name for Pfizer's investigational new drug under application 19736, only available to Plaintiffs under 21 U.S.C. §360bbb-3 (the EUA statute) and also listed as a countermeasure under the PREP Act.[1] "COMIRNATY ®" refers to Pfizer's FDA-licensed drug, but one that was not available to Plaintiffs during the applicable time. Thus, there is one drug technology (Pfizer-BioNTech vaccine) but two "legally distinct" drugs (i.e., COMIRNATY® and Pfizer-BioNTech COVID-19 Vaccine) operating under two different legal frameworks, as discussed in detail in the action before this court.

As the FDA advised Pfizer on August 23, 2021, when COMIRNATY® received FDA licensure,

> The licensed vaccine has the same formulation as the EUA-authorized vaccine and the products can be used interchangeably to provide the vaccination series without presenting any safety or

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[1] "Pfizer-BioNTech COVID vaccine" (lowercase v) means Pfizer's COVID-19 vaccine technology.

> effectiveness concerns. The products are **legally distinct** with certain differences that do not impact safety or effectiveness. [Emphasis added.](See Doc 34-1, Footnote 8)

Unfortunately, Judge Bryan did not discuss the significance of the FDA's "legally distinct" language, which is a crucial issue in this litigation. Therefore, when Judge Bryan used the phrase "Pfizer-BioNTech vaccine" and not the formal names of either COMIRNATY® or "Pfizer-BioNTech COVID-19 Vaccine," his characterization of Plaintiffs' claim was imprecise and confusing. It almost seems as if Judge Bryan was saying that the FDA licensure of COMIRNATY® somehow applied to the EUA/PREP Act version ("Pfizer-BioNTech COVID-19 Vaccine.") That would be contrary to Plaintiffs' factual allegations, which must be accepted as true for purposes of a Motion to Dismiss. Plaintiffs understand that on August 23, 2021, the FDA licensed COMIRNATY® for commercial marketing, but Plaintiffs' allegation was that COMIRNATY® was never commercially marketed and thus was not "available" to Plaintiffs during the relevant time. In other words, COMIRNATY® was licensed on paper, but it did not sit on shelves in Washington State before Shriners terminated the Plaintiffs for exercising their lawful right to refuse the administration of an EUA/PREP Act drug. That is a factual allegation which Plaintiffs can prove at trial. Because it is a factual allegation, it must be accepted as true for purposes of a Motion to Dismiss. Therefore, the gravamen of

the case before Judge Bryan and this court is how Defendants relied upon EUA/PREP Act drugs for Plaintiffs to comply with their Proclamation and mandate.

Thus, Plaintiffs only alleged that no vials of COMIRNATY® were "introduced into commerce for general commercial marketing," resulting in Governor Inslee relying on "investigational new drugs under 21 U.S.C. §360bbb-3" for compliance with his Proclamation, leading to the deprivation of Plaintiffs' statutory and constitutional rights.

Plaintiffs' allegation, both in *Curtis* and in the case at bar, is that while COMIRNATY® may have received its FDA-license on August 23, 2021, it was never "available" to Plaintiffs to comply with Gov. Inslee's proclamation. Moreover, the licensure of COMIRNATY® does not change the EUA/PREP Act status of the available "Pfizer-BioNTech COVID-19 Vaccine," and the laws applicable to that version must still be enforced.

Judge Bryan did not explain why he did not consider as true Plaintiffs' allegation that no licensed drug was introduced into commerce for general commercial marketing (i.e, available). Thus, it appears that Judge Bryan's ruling was not based on the Plaintiffs' allegations. Judge Bryan would not have been able to accurately conclude that because COMIRNATY® was FDA-licensed on August 23, 2021, the investigational new drug 19736 labeled as "Pfizer-BioNTech COVID-19 Vaccine" was also FDA-licensed. This is because the FDA did not label Pfizer's

investigational new drug as licensed, as demonstrated in the August 23, 2021 FDA EUA letter providing that COMIRNATY® and "Pfizer-BioNTech COVID-19 Vaccine" are "legally distinct," as further discussed in the referenced Peter Marks Declaration in Plaintiffs' opposition.[2]

Moreover, the "Pfizer-BioNTech COVID-19 Vaccine" remains under EUA/PREP Act authority through the present. Most importantly, the FDA never stopped regulating "Pfizer-BioNTech COVID-19 Vaccine" as an investigational new drug under application 19736, as demonstrated in the continuous use of the drug only under 21 U.S.C. §360bbb-3 authorization.

This fact is irrefutably demonstrated in the FDA's August 23, 2021 authorization letter (Doc 34-1) issued immediately after the FDA licensed COMIRNATY® for general commercial marketing. First, neither the HHS nor the FDA can issue an EUA for a drug if an FDA-licensed indication for the intended emergency use exists in the marketplace.[3] Second, the EUA letter informed Pfizer that it must submit all data regarding "Pfizer-BioNTech COVID-19 Vaccine" to Investigational New Drug application (IND) number 19736." Third, the FDA

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[2] Doc 34 (Opposition) and 34-2 (Peter Marks Declaration).

[3] 21 U.S.C. §360bbb-3(c)(3)

informed the "emergency response stakeholder" (i.e., the executive branch of the State government) that "Emergency response stakeholders will ensure that vaccination providers (such as Shriners) within their jurisdictions are aware of this letter of authorization and instruct them about the means through which they are to obtain and administer the vaccine under the EUA" (Doc 34-1, Exhibit A, Section III, Letter P). The FDA letter thus informed Shriners (through the State) that "Vaccination providers will administer the vaccine in accordance with the authorization and will participate and comply with the terms and training required by CDC's COVID-19 Vaccination Program." (Doc 34-1, Exhibit A, Section III, Letter R)

Therefore, on August 23, 2021 the FDA informed Shriners (through the State) that it had approved the marketing application for COMIRNATY®, maintained the investigational new drug status for "Pfizer-BioNTech COVID-19 Vaccine," and required Shriners (through the State) to administer the "Pfizer-BioNTech COVID-19 Vaccine" EUA drug under the terms and conditions of the CDC COVID-19 Vaccination Program and the EUA statute to mean, at a minimum, Shriners had to ensure individuals under their Organization's authority were informed of their 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) statutory right to refuse without penalty. The FDA never informed, authorized, or approved Shriners, Governor Inslee, or any

other authority to treat the "Pfizer-BioNTech COVID-19 Vaccine" as a drug licensed by the FDA for general commercial marketing.

Defendants desperately want this court to rule that drug labeling laws are not applicable to Pfizer's two drugs so they can avoid liability for their unlawful actions. Plaintiffs reaffirm their allegation that drugs under the EUA statute, which must be unlicensed for the intended emergency use, can never come under a compulsory vaccine mandate because of how the EUA statute impacts their lawful rights, as discussed in their Complaint.

As a result of Judge Bryan's apparent conclusion that the mere FDA licensure of COMIRNATY®, without availability in the marketplace, was sufficient for Plaintiffs to be compelled to take the "legally distinct" but available EUA/PREP Act "Pfizer-BioNTech COVID-19 Vaccine," he ruled against Plaintiffs on the other counts because he approached them as if "Pfizer-BioNTech COVID-19 Vaccine" was not legally distinct from COMIRNATY®. Had Judge Bryan analyzed the remaining issues of substantive due process, fundamental rights, level of scrutiny, Unconstitutional Conditions Doctrine, qualified immunity, and outrage from the standpoint that no FDA-licensed drug was available, he should have denied Defendants' Motion to Dismiss because the Plaintiffs have alleged a plausible cause of action under 42 U.S.C. § 1983 and other legal theories advanced by Plaintiffs.

Finally, regarding Judge Bryan's Order, he did not address or rule on Plaintiffs' PREP Act allegations at all. Plaintiffs alleged that Governor Inslee's Proclamation required compulsory use of listed countermeasures under PREP Act immunity, meaning Plaintiffs had to choose between their Fourteenth Amendment due process rights to seek judicial relief should they sustain injury from PREP Act drugs or continued employment. Such a choice deprives Plaintiffs of the legal requirement that any potential recipient of a PREP Act product must be able to give informed consent before lawful administration of the product. Requiring the relinquishment of litigation rights, and hinging someone's career on the decision of whether to receive a PREP Act product, vitiates informed consent. Therefore, Governor Inslee's requirement for Plaintiffs to involuntarily forfeit their due process rights as a condition to work in the healthcare industry established an unconstitutional condition because it violated Plaintiffs' substantive due process rights, requiring the strict scrutiny standard of review, because it deprived Plaintiffs of their fundamental right of bodily automony and bodily integrity.

Therefore, Plaintiffs urge this court to give no weight to Judge Bryan's ruling and to deny Shriners' Motion to Dismiss.

RESPECTFULLY SUBMITTED,

Date: 1/8/24

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